

HOUSE BILL 1834

By Eldridge

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

WHEREAS, the framers of the United States Constitution intended for citizens to have the right to freely exercise their religious beliefs; and

WHEREAS, the Free Exercise Clause of the First Amendment to the United States Constitution does not specifically exclude school board members from exercising religious expression; and

WHEREAS, concerning religious exercise within public education, the United States Supreme Court abandoned *Lemon v. Kurtzman*, 403 U.S. 602 (1971) and its endorsement test in establishment of religion cases and instructed that the Establishment Clause must be interpreted by reference to historical practices and understandings in *Kennedy v. Bremerton School District*, 597 U.S. 507 (2022); and

WHEREAS, in *Town of Greece v. Galloway*, 572 U.S. 565 (2014), a majority of the Supreme Court held that sectarian prayers at legislative meetings are permissible under the United States Constitution, stating, "Legislative bodies do not engage in impermissible coercion merely by exposing constituents to prayer they would rather not hear and in which they need not participate"; and

WHEREAS, opinions vary among school districts as to whether a personal prayer may be recited by a school board member during a school board meeting that is open to the public; and

WHEREAS, the Tennessee General Assembly takes a firm position on religious freedom by codifying the right of local board of education members to exercise their religious beliefs by reciting a non-coercive personal prayer to open a school board meeting; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Religious Freedom Act."

SECTION 2. Tennessee Code Annotated, Section 49-2-203(b), is amended by adding the following as a new subdivision:

(17) Open a meeting of the board of education with a prayer led by a member of the board of education; provided, that:

(A) The prayer does not require participation of any person in attendance at the meeting; and

(B) No person is harassed or coerced to participate in the prayer.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.